

- (b) the rolling stock shall not be used until it has been inspected by the Commissioner and its re-use is sanctioned in accordance with the provisions of this chapter.

Comment

Section 26 lays down the conditions for re-opening of closed railway.

27. Use of rolling stock :- A railway administration may use rolling stock as it may consider necessary for the construction, operation and working of a railway:

Provided that before using rolling stock of a design or type different from that already running on any section of the railway, the previous sanction of the Central Government shall be obtained for such use :

Provided further that before giving any such sanction, the Central Government shall obtain a report from the Commissioner that he has a careful inspection of the rolling stock and , in his opinion, such rolling stock can be used.

Comment

Section 27 enjoins on a railway administration a duty to obtain the previous sanction of the Central Government before using any rolling stock of a design or type different from that already running on any section of the railway.

28. Delegation of powers :- The Central Government, by notification, direct that any of its powers or functions under this Chapter, except Sec. 29 or the rules made there under shall, in relation to such matters and subject to such conditions. If any, as may be specified in the notification be exercised or discharged also by a Commissioner.

Comment

Section 28 provides that the powers of the Central Government relating to opening of railways may be delegated to the Commissioner subject to such conditioned as may be specified.

29 Power to make rules in respect of matters in this Chapter :-

- (1) The Central Government may, by notification, make rules to carry out the purposes of this Chapter.
- (2) In particular, and without prejudice to the generality of the force going power. Such rules may provide for all or any of the following matters . namely:

- (a) the duties of a railway administration and the commissioner in regard to the opening of a railway for the public carriage of passengers:
- (b) the arrangements to be made for and the formalities to be complied with before opening a railway for the public carriage of passengers;
- (c) for regulating the manner in which, and the speed at which rolling stock used on railway is to be moved or propelled; and
- (d) the case in which and the extent to which the procedure provided in this Chapter may be dispensed with.

Comments.

Section 29 provides inter alia that the Central Government, before opening a railway for the public carriage of passengers may make rules in respect of the duties of railway administration and the Commissioner, the arrangements to be made and the formalities to be observed before such opening of railway.

Rules – Whether validity framed. – The question whether rules are validity framed to carry out the purposes of the Act can be determined on the analysis of the provisions of the Act.

CHAPTER VI

Fixation of Rates

30.Power to fix rates.- (1) The Central Government may, from time to time, by general or special order fix, for the carriage of passengers and goods, rates for the whole or any part of the railway and different rates may be fixed for different classes of goods and specify in such order the conditions subject to which such rates shall apply.

(2) The Central Government may by a like order, fix the rates of any other charges identical to or connected with such carriage including demurrage and wharfage for the whole or any part of the railway and specify in the order the conditions subject to which such rates shall apply.

Comments

Section 30 sub-rule (1) empowers the Central Government to fix rates for the carriage of passengers and goods and specify the conditions subject to which such rates shall apply.